

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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HAROLD RAGHUNANAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
GEORGE ANTZOULIS, Shield No. 20684, POLICE
OFFICER ALI ALOMAISI, Shield No. 23797,
SERGEANT PETER N. BEHAN, Shield No. 6134, and
POLICE OFFICERS JOHN DOES #s 1-10, (names and
number of whom are unknown at present),

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
January 19, 2021

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007,
POLICE OFFICER GEORGE ANTZOULIS, Shield No. 20684, 63rd Precinct, 1844
Brooklyn Ave, Brooklyn, NY 11210
POLICE OFFICER ALI ALOMAISI, Shield No. 23797, 63rd Precinct, 1844 Brooklyn
Ave, Brooklyn, NY 11210
SERGEANT PETER N. BEHAN, Shield No. 6134, 63rd Precinct, 1844 Brooklyn Ave,
Brooklyn, NY 11210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

HAROLD RAGHUNANAN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
GEORGE ANTZOULIS, Shield No. 20684, POLICE
OFFICER ALI ALOMAISI, Shield No. 23797,
SERGEANT PETER N. BEHAN, Shield No. 6134, and
POLICE OFFICERS JOHN DOES #s 1-10, (names and
number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff HAROLD RAGHUNANAN, by his attorneys, Jacobs & Hazan, LLP, as and for
his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on or about January 29, 2019, at approximately 9:00 p.m., at which time plaintiff was lawfully present in the vicinity of East 55th Street, between Avenue H and Avenue I, Brooklyn, New York, when the individually named defendant police officers unlawfully stopped, questioned, frisked, searched, illegally seized, falsely imprisoned, and falsely arrested plaintiff without reasonable suspicion, probable cause or any legal justification, by, among things. Defendants unlawfully handcuffed plaintiff and transported him to the 63rd Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. Defendants provided false, misleading and incomplete evidence to the Kings County District Attorney's Office and executed a Criminal Court complaint that contained false and misleading allegations against plaintiff, which was sworn to under penalty of perjury. The defendants denied plaintiff the right to due process and the right to a fair trial. Plaintiff was arraigned in Kings County Criminal Court on January 31, 2019 at approximately 1:00 am, at which time he was charged with committing crimes he did not commit, and he was released on his own recognizance.. All charges brought against plaintiff were dismissed and sealed in their entirety on July 29, 2019. Those officers that

did not touch plaintiff failed to intervene and protect him from being falsely imprisoned, falsely arrested, denied the right to due process/ right to a fair trial, and illegally seized. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested/ imprisoned, and denied plaintiff the right to due process/ a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff HAROLD RAGHUNANAN is a resident of the state of New York.

3. Defendant POLICE OFFICER GEORGE ANTZOULIS, Shield No. 20684, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER GEORGE ANTZOULIS, Shield No. 20684, is and was at all times relevant herein, assigned to the 63rd Precinct.

5. Defendant POLICE OFFICER GEORGE ANTZOULIS, Shield No. 20684, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER ALI ALOMAISI, Shield No. 23797, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER ALI ALOMAISI, Shield No. 23797, was at all times relevant herein, assigned to the 63rd Precinct.

8. Defendant POLICE OFFICER ALI ALOMAISI, Shield No. 23797, is being sued in his individual and official capacity.

9. Defendant SERGEANT PETER N. BEHAN, Shield No. 6134, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT PETER N. BEHAN, Shield No. 6134, is and was at all times relevant herein, assigned to the 63rd Precinct.

11. Defendant SERGEANT PETER N. BEHAN, Shield No. 6134, is being sued in his individual and official capacity.

12. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK and also attended a 50-h Hearing on June 7, 2019 in compliance with the Municipal Law Section 50.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. By way of background, on January 29, 2019 at approximately 9:00 pm plaintiff was lawfully present in the vicinity of East 55th Street, between Avenue H and Avenue I, Brooklyn, New York, helping a family friend recover information off of the “boot” that was affixed to his vehicle so that the family friend could call the appropriate company to have the boot removed from his vehicle when the individually named police officer defendants stopped their unmarked police vehicle in the vicinity of where plaintiff and the family friend were located.

21. The defendants asked plaintiff and the family friend if everything was okay, and plaintiff told the defendant police officers that everything was okay.

22. After plaintiff advised the defendants that everything was okay, there was an awkward silence for approximately 45 seconds before the defendant police officers exited their vehicle and aggressively approached plaintiff and the family friend.

23. . Plaintiff tried to prevent the situation from escalating unnecessarily and handed the defendant police officers his identification before the officers began speaking with plaintiff or requested his identification.

24. Plaintiff advised the defendant police officers that the vehicle they were standing next to was owned by the family friend who was standing near plaintiff when the police arrived.

25. Plaintiff explained to the officers that they were trying to get the phone number and the serial number listed on the “boot” that was affixed to the vehicle so that they could call the company to come remove the” boot” from the vehicle.

26. Defendants frisked and searched plaintiff without reasonable suspicion or probable cause when they approached plaintiff, and did not recover any illegal drugs, weapons or contraband pursuant to the frisk and search.

27. The defendants did not believe plaintiff’s explanation for why he and the family friend were present at the location and told plaintiff that they believed the vehicle was stolen.

28. The paperwork documenting who owned the vehicle was inside of plaintiff’s family friend’s apartment, but the defendants refused to permit plaintiff’s family friend to retrieve the paperwork for the vehicle from his apartment.

29. Although the defendants lacked any objective evidence to support their suspicion that the vehicle was stolen, they proceeded to unlawfully handcuff and falsely arrest plaintiff, without probable cause or legal justification.

30. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the police officers have an objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

31. The defendants advised plaintiff that they would be able to determine whether the vehicle was stolen when they returned to the precinct.

32. The defendants falsely arrested plaintiff without probable cause, placed plaintiff in a patrol vehicle and transported plaintiff to the 63rd Precinct against his will.

33. Upon arriving at the 63rd Precinct the defendants unlawfully searched, fingerprinted, photographed, and detained plaintiff in a holding cell for many hours.

34. The defendants did not recover drugs, weapons, or contraband from plaintiff pursuant to the search.

35. Upon information and belief, upon returning to the 63rd precinct the defendants were able to verify that the vehicle belonged to plaintiff's family friend and was not stolen.

36. In order to avoid being disciplined for falsely arresting plaintiff without probable cause to believe the vehicle was stolen, the defendants fabricated allegations against plaintiff that defendants believed would establish probable cause to arrest plaintiff for violating the law.

37. Specifically, the defendants falsely charged plaintiff with Obstructing Governmental Administration in the Second Degree (PL 195.05), without probable cause to believe he committed the crime.

38. The defendants fabricated allegations that they observed plaintiff and the family friend attempting to remove the tire with the boot affixed to it from the vehicle.

39. In fact, at no time did plaintiff and/or the family friend attempt to remove the tire from the vehicle.

40. In fact, at no time did defendants allege that the boot was damaged or tampered with in any way.

41. When the officers arrived at the location of plaintiff's arrest, neither the boot affixed to the vehicle, nor the vehicle's tire had been tampered with.

42. The defendants observed plaintiff examining the boot with a flashlight for the purpose of retrieving a phone number from the boot and used that observation to falsely allege plaintiff was attempting to remove the boot from the vehicle.

43. In fact, plaintiff informed the defendants that he was obtaining the phone number to call the company to have the boot removed from the vehicle.

44. The defendants did not possess any objective facts to support their allegations that plaintiff was tampering with the boot and attempting to remove it from the vehicle.

45. The defendants knowingly fabricated the allegations against plaintiff in order to avoid being disciplined for falsely arresting him for the crime they incorrectly and subjectively suspected he committed when they arrested for possession of a stolen vehicle.

46. Plaintiff was detained at the 63rd Precinct until approximately 7:00 am on January 30, 2019 and he was fingerprinted and photographed by defendants during his detention at the precinct.

47. Thereafter, plaintiff was transported to Kings County Central Booking where plaintiff we unlawfully detained in several large holding cells with numerous other prisoners.

48. Plaintiff appeared before a judge in Kings County Criminal Court on January 31, 2019 at approximately 1:00 am and was arraigned and charged with Obstructing Governmental Administration based upon the false allegations that were fabricated by the defendants.

49. Plaintiff was released on his own recognizance at arraignment, and all criminal charges brought against plaintiff were dismissed and sealed in their entirety on July 29, 2019.

50. . Plaintiff was falsely arrested and unlawfully detained for approximately 29 hours before he appeared before a judge and was released on his own recognizance.

51. As a result of the fabricated allegations made against him by the officers, plaintiff was forced to endure a criminal prosecution brought him for a crime he did not commit that lasted for approximately 6 months.

52. Defendants provided false, misleading, and incomplete evidence to the Kings County District Attorney's Office and executed a Criminal Court complaint that contained the false and misleading allegations against plaintiff, which was sworn under penalty of perjury.

53. The false, misleading, and incomplete information provided by defendants to the District Attorney's Office maliciously caused the initiation of a criminal prosecution of plaintiff, without probable cause.

54. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants have probable cause to believe he violated the law or committed a crime.

55. The false arrest, false imprisonment, unlawful search, and denial of fair trial/ denial of due process caused plaintiff to sustain severe physical, psychological, and emotional trauma.

56. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent and/or stop the false arrest, false imprisonment, unlawful search, and denial of fair trial/ denial of due process against plaintiff.

57. The false arrest, false imprisonment, unlawful search, and denial of fair trial/ denial of due process against plaintiff by the individually named defendants caused plaintiff to sustain physical, economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

74. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

75. Defendants lacked probable cause to search plaintiff.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment, and Fourteenth Amendment Rights

Denial of Right to Fair Trial

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Defendants, individually and collectively, manufactured false evidence and forwarded this false evidence to and/or withheld evidence from prosecutors in the Kings County District Attorney's Office.

82. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

83. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

84. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments to the Constitution of the United States.

85. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, missed school, and deprivation of his constitutional rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

89. Defendants failed to intervene to prevent the unlawful conduct described herein.

90. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

94. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION

Negligence

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. Defendants owed a duty of care to plaintiff.

97. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, and illegally searching plaintiff..

98. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

99. All of the foregoing occurred without any fault or provocation by plaintiff.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

103. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

105. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Harold Raghunanan demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs, and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 19, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 19, 2021

/s/

DAVID M. HAZAN